

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
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United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Officer Nolan Rusk's Limited Motion to Stay Mandate Pending Certiorari — Grant Path

Filed July 15, 2026

Officer Nolan Rusk requests a narrowly dated stay of mandate through August 10, 2026 so that retained Supreme Court counsel can complete institutional review and, if authorized, file a petition for a writ of certiorari. The panel entered judgment June 30 after dismissing Rusk's evidence-sufficiency arguments and affirming the legal denial of qualified immunity on facts assumed for Mara Ellison. Rusk did not petition for rehearing during the period ending July 14.

The request is intentionally shorter than the ninety days permitted by Federal Rule of Appellate Procedure 41(d)(2). It would delay the otherwise expected July 21 mandate by twenty days while preserving a legal question about how *Zorn v. Linton* governs the specificity of precedent that predates an officer's conduct.

Rusk accepts every plaintiff-favorable premise for this motion: Ellison did not strike, reach, flee, threaten, or present immediate danger; she pulled from wrist control after reporting pain; and Rusk applied one five-second drive stun while bringing her down. He seeks no review of what the obstructed recordings prove. The proposed petition would address only whether the pre-incident cases clearly established this single, pre-restraint use despite materially different force sequences.

Precise Certiorari Issue

The contemplated petition would ask whether a circuit court may treat a prior opinion's prospective formulation as clearly establishing the law for materially different conduct when the Supreme Court's intervening decision requires an earlier holding involving similar acts in similar circumstances. The question arises from the relationship between *Estate of Armstrong v. Village of Pinehurst* and *Zorn*.

Armstrong involved five drive-stun applications over roughly two minutes to a stationary man resisting an involuntary-commitment seizure by holding a signpost. The decision gave future officers notice that electrical force requires an immediate safety risk reasonably likely to be cured by tasing. The panel read that guidance to cover one cycle used while Ellison actively pulled during the initial effort to secure her arm.

Zorn, decided after Rusk acted but before the panel judgment, instructed courts to demand a precedent whose holding describes sufficiently comparable force, resistance, warning, and setting. Rusk agrees that *Zorn* cannot itself supply or remove historical facts. His proposed question concerns how its binding decisional method applies to the notice generated by an older circuit opinion.

The issue is legal and cleanly separated from video interpretation. The panel identified the assumed facts, rejected Rusk's factual appellate target, and squarely held that *Armstrong* supplied notice. A petition could therefore be evaluated without resolving witness credibility or supplementing the certified record.

Why the Question Is Substantial

The Supreme Court has repeatedly corrected lower courts for defining clearly established law above the level of the officer's actual conduct. *Zorn* is an especially recent expression of that rule and involved a pain technique used against nonviolent physical resistance. This appeal is among the first opportunities to determine whether a circuit's broadly phrased prospective warning satisfies *Zorn* when its underlying episode was more prolonged and stationary.

Rusk does not argue that only an identical case can defeat immunity. He argues that the differences here concern the dimensions the Supreme Court treats as central: one application rather than five, movement during hand control rather than attachment to a fixed object, and cessation before restraint rather than a repeated extraction sequence. If those differences are immaterial, a general no-danger principle does most of the notice work.

The qualified-immunity question affects a right not to stand trial, and the assumed-fact vehicle avoids an obstacle that often prevents review. A ruling would clarify how lower courts should reconcile circuit precedent intentionally written to guide future officers with later Supreme Court commands demanding factual specificity.

No square circuit division is identified. Rule 41(d) asks for a substantial question, not proof that certiorari will certainly issue. The recency of *Zorn*, the published nature of *Armstrong*, and the panel's express temporal analysis together provide more than a routine assertion that the Court misapplied settled law.

The Merits Position to Be Presented

Rusk would argue that *Armstrong* clearly prohibits its identified category—repeated drive-stun force against stationary, nonviolent resistance in a protective seizure—but does not unmistakably answer the lesser application here. Its defendants received immunity partly because earlier cases could be read not to govern warned force delivered before a person was secured. The opinion's prospective discussion clarified some conduct without converting every electrical use absent immediate danger into one factless rule.

The panel relied on *Yates v. Terry*, *Meyers v. Baltimore County*, and *Smith v. Ray* as reinforcing notice. Those decisions address repeated deployments, continued force after control or surrender, or a distinct takedown against modest movement. Rusk's conduct stopped with a single cycle before Vega completed handcuffing.

Ellison's welfare status, absence of crime, and lack of danger make the constitutional case serious. Rusk does not contend otherwise for this motion. The petition would separate that first-prong concern from the second-prong demand that every reasonable officer understand the specific response to be unlawful.

The proposed merits argument treats *Zorn* solely as law governing the reviewing court in 2026. Historical notice still comes from sources available in February 2025. That distinction prevents retroactivity while respecting the Supreme Court's authority over how prior decisions must be read when immunity is adjudicated.

Good Cause from the Immunity Posture

Mandate issuance would return the case for trial on the sole remaining claim against Rusk. The district record is complete, including depositions, expert submissions, synchronized recordings, dispositive briefs, and a detailed summary-judgment order. Because little merits discovery remains, district proceedings could move from remand to pretrial preparation without a lengthy intervening phase.

That efficiency ordinarily benefits both parties. Here it also means that the immunity from suit could be substantially consumed during the short period needed to decide whether a petition will be filed. Witness preparation, evidentiary motions concerning obstructed footage, exhibit designations, and jury-instruction work would begin on a question that further review could eliminate.

Rusk has retained counsel to assess Supreme Court review and has authorized completion of a petition draft. The requested deadline is concrete: August 10. He will file a written notice earlier if review is abandoned, an extension is obtained, or a petition is lodged. The request therefore does not rest on an indefinite possibility.

Ellison has a legitimate interest in prompt resolution of an encounter that occurred in February 2025. A twenty-day extension beyond the ordinary mandate date is limited when measured against that interest, especially because it preserves only appellate control and does not adjudicate the facts. These circumstances supply case-specific good cause rather than a generic assertion available to every losing party.

Terms That Limit Delay

Rusk asks that any grant expire at the end of August 10 unless one of three events occurs sooner. First, if he decides not to petition, immediate written notice will permit dissolution. Second, if a petition is filed, he will provide the clerk a copy and invoke only the continuation allowed by Rule 41(d)(2)(B)(ii). Third, if the Supreme Court extends the filing time, he will furnish the extension order and seek no broader interval than it permits.

The order may require a status notice by 5:00 p.m. Eastern time on August 10. It may also state that abandonment ends the basis for withholding and that the panel can direct prompt issuance. Rusk does not seek an automatic ninety-day period or an unstated grace interval following expiration.

Security is unnecessary. The appellate judgment awards no damages and imposes no transfer that delay could endanger. Ellison's claimed harm is litigation delay, which a bond cannot readily quantify. The short fixed term and mandatory reporting protect that interest better than nominal security.

The stay would leave the June 30 opinion intact. It would neither reconsider the merits nor prevent a certiorari response. It would postpone only the mandate's effectiveness, keeping jurisdictional authority in this Court until the specified event. District-court preservation orders concerning media and evidence would continue meanwhile.

No Factual Repackaging

The question offered for review does not depend on Rusk's account of a forearm strike or equipment reach. Those facts would strengthen his merits defense but cannot be considered on interlocutory appeal. For present purposes, active pulling means precisely the pain-linked, nondangerous motion assumed by the district court, not concealed aggression.

The cameras' obstruction explains why facts remain for trial; it is not a reason to infer danger. Rusk will not ask the Supreme Court to apply the rule for a record that blatantly contradicts Ellison. The certiorari appendix would include the opinions and materials necessary to show the fixed assumption, without requesting new factfinding.

That discipline makes the vehicle stronger. The Court could decide whether *Armstrong* provided sufficiently particularized notice even though the underlying truth remains disputed. A decision for Rusk would end the claim on immunity; a denial of certiorari would leave the panel opinion and fact trial intact.

The motion likewise does not ask this panel to change its June 30 analysis. It recognizes the judgment as controlling unless a higher court acts. The temporary stay merely protects the ability to seek that review before the immunity-from-trial interest is overtaken by remand proceedings.

Rusk submits that explicit use of the plaintiff-favorable account distinguishes this request from an effort to prolong litigation through factual relabeling. All proposed review is legal, bounded, and capable of resolution on the existing documents.

Conclusion and Certification

The Court should stay its mandate through August 10, 2026. The motion identifies a substantial question about the interaction of *Zorn's* specificity requirement with *Armstrong's* prospective notice, and the completed summary-judgment record creates good cause to preserve immunity from immediate pretrial burdens during a short petition-review period.

If relief is granted, Rusk will submit a written status notice upon filing, extension, or abandonment and in all events by the deadline fixed in the order. He consents to prompt dissolution if no petition or extension supports continuation. He asks that the Court require no security and retain authority to modify the stay for changed circumstances.

Counsel conferred with Mara Ellison's attorney on July 15. Ellison opposes the stay but agreed to file an expedited response by July 17. This motion and its certificate were transmitted electronically to counsel the same day. No petition, extension application, or separate emergency request is presently pending in the Supreme Court.

The Clerk should withhold the mandate while the Court considers this served motion. A grant would affect timing only and would not alter the opinion, judgment, costs direction, or factual assumptions. Rusk requests decision sufficiently before the existing July 21 issuance date to provide both courts and both parties a definite procedural status.

Respectfully submitted for Officer Nolan Rusk.